CONFIDENTIALITY AGREEMENT

In Medellín, on _____

INTERVENING PARTIES

On one side:

Among the undersigned, to wit: on one side, **RAFAEL AARON VASQUEZ**, of legal age, identified with document No. 1.125.642.540, who acts in the capacity of legal representative of **EBEDIX S.A.S.**, a legally incorporated company, domiciled in the city of Medellín and identified with NIT 901.699.819-3 (hereinafter referred to as “EBEDIX”), and **XXXXX**, of legal age, identified with document No. X.XXX.XXX.XXX (hereinafter referred to as “XXXXX”), collectively referred to as **THE PARTIES**.

The Parties, as intervening parties, mutually recognize their capacity to grant this agreement and state that their respective powers have not been in any way limited, suspended, or revoked, and therefore, for this purpose

RECITALS

FIRST. That the Parties are interested in exploring possible avenues of collaboration with the potential expectation of entering into one or more contracts (hereinafter referred to as "the Collaboration").

SECOND. That, for this purpose, it is the intention of each Party to share with the other certain information that may or may not be marked as "Confidential" and which may be provided in digital, audio, visual, or electronic format (hereinafter referred to as "the Information").

In consideration of the foregoing, the Parties enter into this agreement pursuant to the following:

CLÁUSES

CLAUSE ONE. OBJECT

The purpose of this agreement is to establish the terms under which each Party agrees to use and maintain the confidentiality of the Information provided by the other Party to which it has access.

CLAUSE TWO. ABSENCE OF COMMITMENT TO RESULTS

The Parties acknowledge that, as of the date of signing this agreement, there is no obligation or commitment between them to carry out the Collaboration.

They also acknowledge and accept that this agreement does not create any obligation or commitment to carry out the Collaboration.

Consequently, if the Collaboration is not carried out, the Parties will not incur any responsibility nor will there be any right to receive compensation or indemnification.

CLAUSE THREE. DEFINITIONS

Below are the definitions of certain terms that may be used in the management or development of the procedures described in this document. It should be clarified that this is not intended to replace the use of specialized dictionaries on the topics addressed and that are applicable to Colombian legislation.

"Confidentiality": It is the act of maintaining strict confidentiality and secrecy within THE PARTIES and their Affiliate companies, and therefore not disclosing to third parties the technical, financial, economic, or commercial information that, as a result of the execution of this agreement, THE PARTIES exchange during the term of this Agreement.

"Confidential Information": All audiovisual, written, oral, graphic information, or information contained in audio, visual, electronic, or electromagnetic formats, and generally, any information disclosed by THE PARTIES, their affiliates or subsidiaries, including but not limited to, technical information, data models, three-dimensional models, financial, economic, and commercial information related to client or potential partner names, business proposals, project plans, business strategies, organizational structure, corporate structure, company composition, reports, plans, market projections, pricing information, data, and any other industrial information, along with formulas, mechanisms, patterns, methods, techniques, analysis processes, trademarks (registered or unregistered), trade names, drawings, software, data, prototypes, models, data grids, know-how, working documents, compilations, comparisons, studies, or any other document(s) prepared and kept confidential by the suppliers, their affiliates, or subsidiaries.

"Affiliate Companies": All companies in which THE PARTIES have, or have had, directly or indirectly, participation in the share capital or have, or have had, control of the management bodies or the meetings of partners or shareholders, or those companies in which the

shareholders and/or representatives of THE PARTIES have, or have had, directly or indirectly, participation in the share capital or have, or have had, control of the management bodies or the meetings of partners or shareholders. For the purposes of this definition, "control" means that THE PARTIES and/or their shareholders have the power of direction, management, or control mechanisms, policies, subcontracting, and management and administration of such entity, whether through shares, shareholding, power and vote, or by contract."

"Representatives" applies to all members of the Affiliate and their respective employees, officers, directors, contractors, agents, and advisors (including, but not limited to, counselors, consultants, auditors, and accountants).

CLAUSE FOUR. OBLIGATIONS REGARDING USE OF THE INFORMATION; RETENTION OF RIGHTS

The Parties agree to use the Information solely in relation to the analysis of the viability of the Collaboration. The Information is confidential for the Parties, and consequently, the Parties commit not to disclose or transmit the Information, in whole or in part, to any person or entity except to their administrators, directors, employees, or advisors when required for the achievement of the objective. In such cases, the receiving Party will warn those recipients of the confidential nature of the Information and, in any case, will be responsible to the other Party for the use made by such persons. The Parties will not sell, transfer, publish, disclose, exhibit, or otherwise make available to any third party such information unless required by competent authorities, in which case, the recipient of the information must promptly notify the disclosing Party of the information. The Parties agree not to disclose to any third party, whether directly or through their advisors, the fact that the Information has been provided, nor the existence of conversations or negotiations related to the Collaboration, nor the status of these. Each disclosing Party retains all its rights, title, and interest, including all intellectual property rights, in and to all its Information. Any disclosure of such Information under this document will not be interpreted as a transfer, grant, option, license, or other transfer of any right, title, or interest of any kind to the receiving Party or any of its representatives.

CLAUSE FIVE. REVERSE ENGINEERING

The Parties agree not to conduct, perform, or attempt (nor allow any of their employees, representatives, or Affiliate companies to do so) any reverse engineering process, or decompile any software, hardware, firmware, data models, data meshes, audiovisual materials, videos, photographic materials, or any other technological solutions provided under this agreement, unless formal written authorization is obtained from the disclosing Party.

CLAUSE SIX. EXCEPTIONS TO THE OBLIGATIONS

The confidentiality obligations outlined in this agreement shall not apply to information with respect to which the receiving party can demonstrate:

1. That it was in the public domain at the time it was communicated or became public without any breach of the confidentiality obligation by the receiving party.
2. That it has prior written consent from the disclosing party to reveal the information.
3. That it obtained from a source other than the disclosing party, without any confidentiality obligation.
4. That it already possessed without any confidentiality obligation.
5. That it developed independently.

When the communication or disclosure of all or part of the Information is imposed by a legal provision or required by a judicial or administrative order, such action will be limited to the extent necessary to comply with the provision or order. Before making such communication or disclosure, the receiving party of the Information must provide the disclosing party with, as long as permitted by law: (1) prompt written notice of such requirement, justifying the obligation of the measure and the extent to which it would apply, so that the disclosing party can request, at its exclusive cost and expense, a protective order or other remedy; and (2) reasonable assistance, at the exclusive cost and expense of the disclosing party, to oppose such disclosure or request a protective order or other limitations on the disclosure. If, after providing such notice and assistance as required by this document, the receiving party remains subject to a legal order to disclose any Information, the receiving party (or its representatives or others to whom such legal order is addressed) will disclose only that part of the Information which, following the legal advisor's advice, the legal order specifically requires the receiving party to disclose, and will make commercially reasonable efforts to obtain assurances from the relevant court or agency that such Information will be treated confidentially.

CLAUSE SEVEN. TERMINATION

This Agreement will come into effect on the date of its signature and will terminate after a period of three (3) years from that date, or earlier if the Parties decide to terminate it by mutual agreement. However, the confidentiality obligations arising from this Agreement will remain in effect for the Parties for a period of five years from the termination of the Agreement. Once the Agreement has been terminated, regardless of the cause, the Parties will proceed to return all previously received Information and will destroy all copies of all or part of the Information in their possession or in the possession of the individuals to whom they have provided any part of it, including any notes taken from it.

CLAUSE EIGHT. ASSIGNMENT

This agreement may not be assigned, in whole or in part, by either Party without the prior written authorization of the other. Any attempted assignment or transfer will be null and void and will have no legal effect.

CLAUSE NINE. APPLICABLE RULES, JURISDICTION, AND VENUE

In the event that any controversies arise regarding the interpretation and fulfillment of this Agreement, the Parties agree to be strictly bound by the provisions set forth in this Agreement, which constitutes the entire agreement reached by the Parties to govern their mutual relations with respect to its subject matter, and no other agreement or rule may be claimed by either Party

RIGHT AND APPLICATION OF GOOD FAITH

The present Contract shall be governed in all its aspects by Colombian law, which is the only applicable law. Any difficulty or dispute arising between the parties concerning the application, interpretation, duration, validity, or execution of this Contract shall be submitted to arbitration, in accordance with the laws of the Republic of Colombia in effect at the time of the request, except for disputes related to the intellectual property of any of the Parties with contracts signed with international entities, which shall be governed by the law of the United States of America and in accordance with the Arbitration Rules of the WIPO (World Intellectual Property Organization). The parties grant an irrevocable special power to the Chamber of Commerce of Medellín – Arbitration and Conciliation Center to, at the written request of any of the parties, designate the arbitrator(s) and the respective procedures and actions in accordance with Article 62 of Law 1563 of 2012 (“Arbitration Statute”).

EACH PARTY IRREVOCABLY AND UNCONDITIONALLY WAIVES, TO THE GREATEST EXTENT ALLOWED BY APPLICABLE LAW, ANY RIGHT THEY MAY HAVE TO A JURY TRIAL IN ANY LEGAL ACTION, PROCEEDING, CAUSE OF ACTION, OR VIOLATION ARISING OUT OF OR RELATED TO THIS CONFIDENTIALITY AGREEMENT.

CLAUSE TEN. REMEDIES

Each Party shall be responsible to the other for all direct damages caused as a result of the breach of this Agreement by that Party or by its administrators, executives, or advisors. Each Party acknowledges and agrees that monetary damages may not be an adequate remedy for any breach or threat of breach of this Confidentiality Agreement by that Party or its representatives. Therefore, in addition to all other remedies available by law, the non-breaching Party shall have the right to seek specific performance, injunctive relief, and other equitable remedies as a remedy for such breach or threat of breach, and the Parties hereby

waive any requirement to obtain or post any bond or demonstrate actual monetary damages in connection with such claim.

CLAUSE ELEVEN. OWNERSHIP AND FUTURE BUSINESS

The parties agree that the development of this contract does not constitute an obstacle to the development of future business opportunities with the same or different parties, regardless of whether these new business opportunities arise from the transfer of knowledge, materials, and intellectual property shared in this agreement. All materials developed under this agreement shall be owned in terms of intellectual property by the party that incurred the costs of developing and registering such materials, and therefore, they are covered as intellectual property of the party that developed them.

CLAUSE TWELVE. GENERAL PROVISIONS

This Confidentiality Agreement constitutes the sole and entire agreement between the Parties with respect to the matter contained in this document, and replaces all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral, with respect to said matter. This Confidentiality Agreement may only be amended, modified, or supplemented by a written agreement signed by each Party to this document. If any of the provisions set forth in this Confidentiality Agreement is found to be unenforceable, in whole or in part, the remaining provisions of this Confidentiality Agreement shall remain enforceable. Any unenforceable provision in part shall apply to the extent that it is valid and enforceable. It is further understood and agreed that no failure or delay by either Party in exercising any right, power, or privilege under this document shall operate as a waiver of the same, nor shall any single or partial exercise thereof preclude any other or further exercise of the same or the exercise of any other right, power, or privilege under this document. In witness whereof, the Parties sign in duplicate, in the city of Medellín, on the __ of _____ of ____.

By,

_____

RAFAEL AARON VASQUEZ

EBEDIX S.A.S.

Legal Representative

By,

_____

Name:_____

C.C: _____----___